



# SNAP Non-Household Members and Excluded Household Members

**Policy 24.07**

**Effective: September 1, 2022**

## **Introduction**

Tennessee Department of Human Services (TDHS) Family Assistance staff must be able to identify individuals who are considered either a non-household member or an excluded household member to determine SNAP eligibility.

## **Scope**

This policy provides procedures and guidelines to assist in identifying who is considered either a non-household member or an excluded household member for the purposes of determining eligibility for Supplemental Nutrition Assistance Program (SNAP) along with how to treat the resources, income, and deductions of these household members.

## **Policy**

### **Non-Household Members**

Certain individuals residing with a household are not considered household members when determining the household's eligibility and allotment amount. These non-household members may participate as separate households, if otherwise eligible.

The following individuals are considered non-household members:

1. Roomers
2. Live-In Attendants
3. Boarders
4. Ineligible students –For more information regarding ineligible students refer to [Policy 24.27 SNAP Students in Higher Education](#).
5. Other non-household members – Other individuals who live in the household but do not customarily purchase food and prepare meals with the household are considered non-household members.

**Roomers**

A roomer is an individual to whom a household furnishes lodging, but not meals, for compensation.

Staff may refer to [Scenarios for Non-Household Members](#) for an example scenario.

**Live-In Attendant**

A live-in attendant is an individual who resides with a household to provide medical, housekeeping, childcare, or other similar personal services.

Staff may refer to [Scenarios for Non-Household Members](#) for an example scenario.

**Boarders in the SNAP Household**

A boarder is an individual residing with others to whom they are paying reasonable compensation for lodging and meals.

1. A household in which a boarder resides may participate in SNAP if he or she meets all of the eligibility requirements.
2. The amount of payment that the boarder gives the household is self-employment income.
3. Boarders are ineligible to participate in Supplemental Nutrition Assistance Program (SNAP) separate and apart from the household providing the room and board. However, they may participate as members of the household providing the room and board, only at the household's request. If included they are considered household members and their income and resources would count entirely.
4. Boarder status can only be granted to individuals who pay "reasonable" compensation for room and board.
  - a. To determine reasonable compensation for boarders use only the amount paid for meals to determine if the individual pays reasonable compensation, provided that the amount paid for meals is distinguishable from the amount paid for lodging.
  - b. For individuals whose board arrangement is for more than two meals per day, "reasonable compensation" must be an amount that equals or exceeds the maximum SNAP allotment for the appropriate size of the boarder household.
  - c. For individuals whose board arrangement is for two (2) meals or less per day, "reasonable compensation" must be an amount that equals or exceeds two-thirds of the maximum SNAP allotment for the appropriate size of the boarder household.

Refer to [Treatment of Income, Resources, and Deductible Expenses of Non-Household Members](#) on how to treat the income and resources of boarders who are non-household members.

**Individuals Who Cannot Be Considered Non-Household Members**

The following individuals cannot be granted non-household status:

1. A group of individuals who live together and customarily purchase food and prepare meals together for home consumption;
2. Children under age twenty-two (22) who are living with their parents;

3. Children under age eighteen (18) who are under the parental control of an adult household member; and
4. A spouse of a member of the household.

Refer to [Treatment of Income, Resources, and Deductible Expenses of Non-Household Members](#) for guidance on how to address the treatment of income, resources, and deductible expenses for non-household members.

### **Excluded Household Members**

There are instances when certain household members need to be identified as excluded from participation in SNAP either as members of the household or as separate households. These are:

1. Ineligible aliens or individuals with questionable citizenship;
2. Individuals disqualified because of failure to provide or apply for a social security number (SSN);
3. Individuals disqualified for intentional program violation (IPV);
4. Individuals disqualified for non-compliance with the work requirements, including voluntary quit;
5. Individuals convicted of trafficking in SNAP benefits in the amount of \$500 or more;
6. Individuals who have been convicted of a violation by a Federal, State, or local court of trading SNAP benefits for a controlled substance;
7. Individuals who have a violation based upon a finding by a Federal, State, or local court of trading firearms, ammunition, or explosives for SNAP benefits;
8. Individuals convicted by a court, Administrative Disqualification Hearing (ADH), Administrative Disqualification Waiver (ADW), or a disqualification consent agreement of having made a fraudulent statement or representation with respect to identity or residence in order to receive multiple benefits simultaneously;
9. Individuals convicted of the following types of convictions after February 7, 2014, and who are also not in compliance with the terms of their sentence or parole;
  - a. Aggravated sexual abuse under section 2241 of title 18, United States Code;
  - b. Murder under section 1111 of title 18, United States Code;
  - c. Sexual exploitation and other abuse of children under chapter 110 of title 18, United States Code;
  - d. A Federal or State offense involving sexual assault, as defined in section 40002(a) of the Violence Against Women Act of 1994 (42 U.S.C. 13925(a)); or
  - e. An offense under State law determined by the Attorney General to be substantially similar to title 18 crimes listed above.
10. Individuals who are fleeing felons or probation/parole violators;

- An individual is not a fleeing felon or a probation or parole violator if the law enforcement agency does not intend to enforce the felony warrant or to arrest the individual for a probation or parole violation within thirty (30) days of the status information request.

11. Ineligible able-bodied adults without dependents (ABAWD);

12. Individuals convicted under federal or state law of a felony drug offense which occurred after August 22, 1996, and which involved the possession, use, or distribution of a controlled substance, unless the individual is complying with or has already complied with all obligations (including any substance abuse treatment requirements) imposed by the criminal court, and provide proof of one of the following in regard to the most recent drug-related conviction:

- a. Verification that the individual is currently participating in a substance abuse treatment program approved by TDHS;
- b. If the individual is not actively participating in a substance abuse treatment program approved by TDHS, is currently enrolled in such a program, but is on a waiting list for participation, and enters the treatment program at the first opportunity; or
- c. Verification that the individual has satisfactorily completed a substance abuse program approved by TDHS; or
- d. Verification that an individual has been determined by the Tennessee Department of Mental Health and Substance Abuse Services (TDMHSAS) to not need substance abuse treatment according to TennCare guidelines.
  - i. A listing of such programs may be found on the [Tennessee Department of Health's webpage](#) under the Substance Abuse Treatment Provider Directory.
  - ii. Other treatment programs not covered in this definition may be considered on a case-by-case basis by contacting the SNAP Policy Unit in the state office.
- e. Individuals that received treatment in a state other than Tennessee, this definition extends to a substance abuse treatment program licensed or approved by the appropriate state agency where the individual received treatment. Other treatment programs not covered by this definition may be considered on a case-by-case basis by contacting the SNAP Policy Unit.
- f. Exemption from disqualification from program participation does not apply to persons convicted of a Class A drug-related felony (or its equivalent if convicted in another state).
- g. Individuals with a judicial diversion for Class E felony drug charges, who are cooperating with the court or have successfully completed the probationary period, are eligible to receive SNAP benefits if other eligibility criteria are met. These individuals are not required to meet the eligibility criteria for non-Class A felons unless the requirements are imposed by the court.

For individuals convicted of certain crimes, fleeing felons, and probation/parole violators, staff shall refer to the supporting document [Drug Felons, Noncompliant Felons, Fleeing Felons, and Probation or Parole Violators](#).

There are certain ways to treat the resources, income, and deductible expenses of excluded household members. On the ways to treat the income, resources, income, and deductible expenses of excluded household members, refer to [Treatment of Income, Resources, Income, and Deductible Expenses of Excluded Household Members](#).

### **Length of Penalty**

1. Individuals found to have made a fraudulent statement of representation with respect to identity or residence in order to receive multiple benefits simultaneously are disqualified for ten (10) years.
2. If determined to be a fleeing felon or a probation/parole violator, the individual is disqualified for the duration of time they are considered fleeing or in violation.
3. If the individual has a first (1st) violation with a finding by a federal, state, or local court for the trading of benefits for a controlled substance, the individual is disqualified for a period of twenty-four (24) months.
4. An individual who has a second (2nd) violation with a finding by a federal, state, or local court for the trading of benefits for a controlled substance; first violation based upon a finding by a federal, state, or local court for the trading of firearms, ammunition, or explosives for benefits; convicted of a felony offense which occurred after August 22, 1996, and involving the possession, use or distribution of a controlled substance, except as provided in the section entitled, Section G Excluded Household Member. is permanently disqualified from SNAP.
5. Individuals found by a federal, state, or local court to have used or received benefits in a transaction involving the sale of firearms, ammunition, or explosives shall be permanently ineligible to participate upon the first occasion of such violation.
6. Individuals convicted by a federal, state, or local court of having trafficked benefits for an aggregate amount of five hundred dollars (\$500) or more shall be permanently ineligible to participate upon the first occasion of such violation.

### **Supporting Documents**

[Policy 24.27 SNAP Students in Higher Education](#)

[Scenarios for Non-Household Members](#)

[Treatment of Income, Resources, and Deductible Expenses of Non-Household Members](#)

[Drug Felons, Noncompliant Felons, Fleeing Felons, and Probation or Parole Violators](#)

[Treatment of Income, Resources, Income, and Deductible Expenses of Excluded Household Members](#)

**Definitions/Acronyms**

| <b>Term</b>                              | <b>Definition</b>                                                                                                                                  |
|------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>ADH</b>                               | Administrative Disqualification Hearing                                                                                                            |
| <b>ADW</b>                               | Administrative Disqualification Waiver                                                                                                             |
| <b>Boarders</b>                          | An individual residing with others to whom he/she is paying reasonable compensation for lodging and meals.                                         |
| <b>IPV</b>                               | Intentional Program Violation                                                                                                                      |
| <b>Live-in Attendants</b>                | An individual who resides with a household to provide medical, housekeeping, child-care, or other similar personal services.                       |
| <b>Non-Household Members</b>             | An individual(s) residing within a household that is not considered a household member when determining eligibility and allotment amount for SNAP. |
| <b>Roomers</b>                           | An individual to whom a household furnishes lodging, but not meals, for compensation.                                                              |
| <b>SNAP</b>                              | Supplemental Nutrition Assistance Program                                                                                                          |
| <b>SSN</b>                               | Social Security Number                                                                                                                             |
| <b>Substance Abuse Treatment Program</b> | Substance abuse program licensed by the Tennessee Department of Mental Health and Substance Abuse Services.                                        |
| <b>TDHS</b>                              | Tennessee Department of Human Services                                                                                                             |
| <b>TDMHSAS</b>                           | Tennessee Department of Mental Health and Substance Abuse Services                                                                                 |

**Supersedes**

Policy 24.07 SNAP Non-household Members and Excluded Members eff. date 12/31/2019

**Authority**

7 CFR §273.1; 7 CFR §273.11

Tenn. Comp. R. & Regs. 1240-01-2-.02

**Application**

TDHS Family Assistance Staff and Contractors

**Revision History**

| Date       | Version    | Location of Change         | Description/Reason for Change                                                                                                                                                                                                                |
|------------|------------|----------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 07/29/2022 | 09/01/2022 | Excluded Household members | Updated clarification for violent offenders under excluded household members. Added a supporting document on the procedures for determining individuals who are felons as described in Excluded Household Members sections #9, #10, and #12. |
| 12/12/2019 | 12/31/2019 | N/A                        | New Policy                                                                                                                                                                                                                                   |

**Approval History**

| Approved By        | Approver Title | Approved Date | Effective Date |
|--------------------|----------------|---------------|----------------|
| Clarence H. Carter | Commissioner   | 07/29/2022    | 09/01/2022     |
| Danielle Barnes    | Commissioner   | 12/12/2019    | 12/31/2019     |

**Current Approver**